



COMMUNITY USAGE LIABILITY WAIVER FORM

I, _____ (the "Volunteer" and/or participant) am volunteering my services, on this _____ day of _____, 20____ to help clean up and maintain Ka'ehu Bay and/or utilize the area for cultural practice or community events. I agree to the following:

1. I am volunteering my services and/or participating in a community event at Ka'ehu to help with clean-up, land restoration, cultural practice and/or education, and/or community events;
2. I will perform assigned tasks that are within my physical capability, and I will not undertake tasks that are beyond my ability;
3. I will not participate if under the influence of alcohol or any drug that could impair my physical or mental abilities;
4. I am familiar with the safe operation and use of machinery, equipment and tools that I may utilize in connection with the Event, and I will not undertake to use any machinery, equipment or tools with which I am unfamiliar or which I do not know how to operate safely;
5. I will perform only those tasks assigned, observe all safety rules, and use care in the performance of my assignments;

I further understand that there are certain inherent risks and dangers involved in working at Ka'ehu Bay including slipping, falls, strains, overexertion, exposure to sun, abrasions, struck by or striking objects, and risks associated with working with and around agriculture, landscaping machinery and electrical equipment. Further, in consideration of the permission to participate as a volunteer, I hereby agree to defend, hold harmless and indemnify the County of Maui and KA'EHU from any and all claims, demands, damages, actions or causes of action pursued by any persons or organizations arising out of any injuries that may occur as a result of my participation as a volunteer at Ka'ehu Bay.

Participant's Printed Name	Signature	Date
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Parent/Legal Guardian's Printed Name	Signature	Date
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MEDIA RELEASE

I, _____ (participant's name), hereby give my permission on this _____ day of _____, 20____ to KA'EHU to use my work, photos, and any video recordings of my name, voice and/or likeness on its website, social media platforms, powerpoint presentations, and publications. I understand that photos and video recordings of me will be used exclusively for non-commercial, educational purposes, which may include, but not limited to, distribution by social media (facebook and instagram) Mālama Ka'ehu, the www.kaehu.org website and outreach to show community usage of the area. I understand that there will be no financial or other remuneration for use of my photos and/or video recordings, and I hereby release KA'EHU from any liability resulting from or connected with the publication of such work. Permission is granted for the duration of the media.

KA'EHU may use my name, likeness, and work for publicizing and promoting the use of these recordings.

YES ☐ NO ☐

KA'EHU has permission to photograph, videotape or otherwise record myself, name, and voice and/or likeness for educational purposes.

YES ☐ NO ☐

Participant's Printed Name	Signature	Date
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Parent/Legal Guardian's Printed Name	Signature	Date
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Maui Health Community Service Participation Agreement

Prior to participating in any Maui Health (MH) Community Service Projects you must agree to this MH Community Service Project Participation Agreement. By checking "Agree" and signing below, you agree that:

- 1) You are at least 18 years old; and
- 2) You have read and agree to this Participation Agreement which is comprised of both the Liability Waiver and Release and Consent for Photos, Audio, Name and Creative Works.
- 3) A link to this Participation Agreement is provided on the Maui Health website at **mauihealth.org/volunteerform**. Please note that if guests or children will accompany you to a MH Community Service Project, a separate Participation Agreement will be needed.

1. Liability Waiver

I am an employee or retiree of Maui Health ("Employer"), or guest of an employee or retiree, participating in one or more volunteer community service projects. I recognize that participation in the volunteer community service project activities may require physical exertion that may be strenuous and could cause physical injury or death. I am fully aware of the risks and hazards involved in participating in such activities.

I understand that participation in the community service project is completely voluntary on my part, and is neither expected nor required by my Employer. I agree that (a) my Employer has not in any way mandated, requested, or encouraged participation; (b) participation or non-participation will have no effect on my employment with my Employer; and participation therein are not related in any way to my job or job-related activities with my Employer. I have not been promised nor do I expect compensation from Maui Health for my services.

In consideration of being permitted to participate in the community service project, I agree to assume full responsibility for any risks, injuries or damages, known or unknown, which I might incur as a result of participating in the MH community service project and, on behalf of myself and my heirs, forever release and hold harmless Maui Health from all liability, claims, damages, costs or expenses arising out of or in any way related to my participation in the community service project to the fullest extent permitted by applicable law.

"Maui Health" means Maui Health and its hospitals and clinics, and each of their affiliates and subsidiaries and their respective directors, officers, employees, agents, customers, successors and assigns.

2. Release and Consent for Photos, Audio, Name and Creative Works

In exchange for valuable consideration received (including any and everything you might have received from Maui Health in exchange for your participation, whether it's a gift card or just the fun of

being a part of our promotional/service activities) I hereby consent to the unrestricted use for or by Maui Health the following:

- **Photographs/Video Recordings:** any and all photographs and/or video recordings taken of me and all images created from such recordings (collectively “Images”).
- **Audio Recordings:** any and all audio recordings made of my voice and all recordings created from such recordings.
- **Name/Statements:** my name and any stories, statements or quotes I have provided (whether quoted or paraphrased, with or without enhancements).
- **My Personal Artwork, Photos, or Other Creative Works:** paintings, songs, stories, videos, photographs or other original, creative works (“Creative Works”) which I created and have submitted to Maui Health for its use.

Scope of Consent. Maui Health may use my name, Images, audio recordings, statements and/or Creative Works as indicated above, for any and all purposes, including but not limited to use in promotional materials, health education materials, public relations, professional education, and art, and in all media, including electronic, digital, Internet, and print media, without further compensation to me. I certify that I am not a minor and am free and able to give such consent. (If the person is a minor, a parent or guardian must complete the relevant section below.)

Waiver. I waive any right to approve: (1) the finished photographs, Images, audio recordings and/or statements made by me, and any marketing materials or other printed, video or digital matter that may be used in connection with my name, Images, audio recordings, statements and/or Creative Works; and (2) the eventual use of any of the foregoing. I acknowledge that Maui Health owns all rights in the photographs, Images, audio recordings and/or statements made by me and I waive any claims that I have or may have based on its usage of them or any works derived from them.

License. As to the Creative Works, I hereby grant to Maui Health a world-wide, non-exclusive, royalty-free, irrevocable, sublicensable and transferable license to use, distribute, modify, reproduce, publicly perform and publicly display the Creative Works and any related materials for any and all purposes and in all media.

Release and Warranty. I hereby release and hold harmless Maui Health from all damages and liability that may arise from or in connection with the use of my name, Images, audio recordings, statements and/or Creative Works. I warrant and affirm that I own all rights in the Creative Works and have the full legal right and authority to grant Maui Health permission to use them. I further warrant that I have the written consent of each and every identifiable individual person in my Creative Works to use their likeness for the purposes identified herein.



Check to Agree (Or click here to sign digital form)

Print Name:

(Provide name of minor(s) and parent/guardian, if applicable):

Signature:

Date: